

Submission on Implementing Carpentry Registration and Licensing

Response to the Victorian Department of Transport and Planning consultation paper

Consultation submission draft version 0.3

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Evidence review status: Claims and Evidence Audit v0.1 and Third P Findings Disposition Register v0.1 applied. Legal, policy, economic and practitioner review remain outstanding.

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This submission supports proportionate registration and licensing for carpentry work where minimum competence, direct accountability, effective compliance and enforcement can contribute to reducing material risk. It also asks government to distinguish minimum trade entry competence from advanced occupational capability and to preserve a pathway for evidence-based progression without assuming that a new licence title is necessary.

Executive position

Carpenters for Housing Reform Victoria supports the introduction of minimum competence and accountability requirements for regulated carpentry work, provided the framework is practical, evidence-based and proportionate to the work performed and the authority exercised.

One leading option for detailed testing is a work-and-risk-based framework rather than wholesale duplication of Victoria's legacy domestic and commercial builder classes. Technical competence should be defined by the work a practitioner is authorised to perform. Contracting authority, business competence, financial requirements and insurance should be attached where justified by the practitioner's functions, authority and risk. Legislative feasibility and insurance consequences should be tested before the model is settled.

The scheme should establish a credible minimum carpenter standard without assuming that entry registration demonstrates every capability required in complex residential renovation. Victoria should preserve the capacity to test whether a distinct advanced capability gap exists. An endorsement, revised existing class, additional class, non-statutory credential or no additional mechanism should remain available until the relevant scope, consumer problem, assessment reliability and legal consequences are established.

The 2024 draft impact analysis is used only as historical context. Its figures do not represent current government policy or a current forecast and should not determine the final design without updated evidence.

Primary recommendations

- Use a work-and-risk-based general carpenter class, with a separate specialist class or endorsement for formwork and falsework, as one leading option for detailed testing against legacy-class alignment. The Department should compare coverage, simplicity, mobility, cost, enforceability and unintended scope gaps before selecting the model.
- Separate technical competence from contracting authority. Apply additional business, probity, financial and insurance requirements where justified by the practitioner's functions, authority and risk.
- Use mandatory building standards and consequence of failure as the starting point for prescribed work, while addressing temporary stability, interfaces between trades, progressive discovery and other risks not captured by a simple list of finished work types.
- Preserve a lawful continued-work pathway for the existing workforce. Provisional registration is the leading mechanism unless another approach provides equivalent continuity, competence assurance, targeted gap training and controls matched to identified gaps.
- Establish an auditable assessment system using qualification evidence, verified experience, practical or scenario-based assessment, technical testing and referee verification. A critical safety, honesty or practitioner-boundary failure should not be averaged away by stronger performance elsewhere.
- Retain registered-builder accountability and define the interaction between builders, subcontractors, employees, apprentices, owner-builders and corporate entities in plain operational guidance.
- Collect baseline and post-implementation data capable of testing whether registration reduces attributable defects rather than merely increasing the number of regulated practitioners.
- Pilot assessment instruments and transition processes with independent practitioners before full commencement, including regional access, processing time, cost and assessor-calibration testing.

What the consultation changes

Issue	Current consultation signal	Submission implication
Class structure	DTP is testing legacy builder-class	Support the simpler work-based

	alignment against work-and-risk-based classes.	model while requiring clear scope and interfaces.
Role tiers	DTP questions whether separate subcontractor registration and employee licensing remain proportionate.	Separate competence from contracting functions through role-based endorsements or additional requirements.
Existing workforce	Provisional pathways, recognition of competence and targeted gap training are open for design.	Offer an evidence-governed transition model, not automatic grandfathering or forced repetition.
Advanced capability	The paper focuses on minimum competence and direct accountability.	Explain that advanced renovation capability is a separate progression question and should not be inferred from basic registration.
Future regulation	The framework may extend to waterproofing and welding.	Use a coherent architecture that can scale across trades without copying unsuitable legacy classes.

Response to consultation questions

1 Priority objectives and outcomes

The first priorities should be fewer attributable defects, competent performance of regulated work, direct practitioner accountability, protection of consumers from unsafe or non-compliant work, and a credible incentive to complete recognised training. The scheme should also preserve workforce capacity, make practitioner scope intelligible to builders and consumers, and create fair occupational progression.

- Where current data permits, measure defect incidence and severity by work type and responsible role, not only total complaints. Where it does not, develop and publish a transparent attribution method.
- Establish baseline measures for workforce participation, apprentice completion, illegal work, application delays and regional access using available data, while identifying material gaps and estimation limits.
- Publish clear scope and disciplinary history so registration conveys useful information rather than a generic badge.

2 Effectiveness of registration and licensing

Registration and licensing are intended to contribute to these objectives by restricting defined work, setting minimum competence, identifying practitioners and enabling discipline. It will not be effective by itself. Defects may arise from design, materials, sequencing, supervision, commercial pressure or decisions made by others. The causal responsibilities of carpenters and registered builders must remain distinct and visible.

- Pair entry controls with active compliance, technical guidance, rectification and proportionate enforcement.
- Do not assume that a qualification or registration alone establishes competence in every work context.
- Evaluate outcomes against a pre-implementation baseline and adjust the scheme where expected benefits are not demonstrated.

3 Alternative regulatory approaches

Less burdensome tools can complement registration and may not provide equivalent accountability for every higher-consequence work risk. Alternatives include stronger builder supervision duties, targeted inspections, mandatory records for concealed or critical work, technical education and voluntary advanced recognition. The correct approach is the lowest intervention that demonstrably addresses the verified problem.

- Use registration for material work risks and direct accountability.
- Use guidance, education or voluntary recognition where restriction is not justified.
- Use targeted inspection and evidence requirements where defects are not reliably prevented by entry qualifications.

4 Risk factors for restricting work

Risk should be assessed by consequence of failure, likelihood of non-compliance, whether mandatory standards apply, the difficulty of detecting defects before concealment, and the degree of independent judgment exercised. Contract value should not be used as the sole or decisive proxy for work risk.

- Structural stability and load path, including temporary stability during alteration.
- Weatherproofing, cladding, wet-area and building-envelope interfaces.
- Fire safety, safe access and egress, accessibility and energy-performance obligations.
- Work concealed before ordinary inspection and work dependent on another practitioner's design or certification.
- Existing-building uncertainty, progressive discovery and the need to stop, investigate or refer.

5 Existing builder classes or proposed risk-based classes

The existing classes are useful comparators but should not be adopted wholesale without testing their fit as a trade framework. Their domestic-commercial split, number and historical purpose may create complexity, duplication and inappropriate business requirements. Our preferred starting option for detailed testing is a general carpenter class across relevant building types, plus a specialist formwork and falsework class or endorsement.

- Map the proposed scope against existing DB-L and commercial classes to prevent gaps and unintended overlap.
- Retain builder classes for broader contracting, supervision and project responsibility.
- Review whether omitted activities such as stairs, temporary support and fire-related carpentry create material gaps rather than excluding them solely because other occupations also perform them.

6 Subcontractor and employee tiers

Separate technical standards for subcontractors and employees are difficult to justify where they perform the same regulated work. A common work-based registration should establish competence. Contracting authority should be added through an endorsement or additional requirements covering business competence, probity, financial capacity and any necessary insurance.

- Use terminology consistently across building and plumbing frameworks.
- Make employment status changes administratively simple so the scheme does not distort workforce arrangements.
- Ensure the responsible registered builder retains accountability for project-level direction, coordination and supervision.

Authority and handoff boundaries. Registration to perform prescribed carpentry work should not, by implication, authorise consumer contracting, building-permit responsibility, project-level supervision or coordination, structural design or certification, or specialist regulated work. The final framework should state

when a carpenter must stop, refer or work under the authority of a registered builder, engineer, building surveyor or licensed specialist practitioner.

7 Provisional pathways

A lawful continued-work pathway should be available for the existing workforce while identified gaps are addressed. Provisional registration is a credible mechanism, but an alternative may be preferable if it provides equivalent continuity, assessment integrity and accountability. Entry must still require identity, verified work-history and baseline safety evidence. Transitional status should not become automatic grandfathering.

- Assess competence against the required outcome, not merely possession of documents.
- Recognise prior learning and verified experience.
- Require only targeted training or experience for demonstrated gaps.
- Apply conditions proportionate to the specific gap and provide a defined route to full registration.

8 Oversight of provisional practitioners

Oversight should be risk- and gap-based. A person with a narrow documentary gap should not face the same controls as a person with an unresolved safety-critical competence gap. Oversight may involve an appropriately registered builder, a registered practitioner in the relevant class, an approved assessor or the BPC, depending on the function.

- Record the identified gap, permitted work, supervision or verification requirement, milestones and completion evidence.
- Do not permit unsupervised performance where a safety-critical capability remains unproven.
- Use independent moderation for contested assessments and critical-failure decisions.

9 Support for experienced carpenters

Government should minimise avoidable cost and time away from work while preserving the competence outcome. Options should include targeted subsidies or capped transition-assessment costs, regional and after-hours access, plain-language guidance, pre-application checking and recognition of verified workplace evidence. Eligibility and funding levels should follow current cost and workforce modelling.

- Fund or cap the cost of transition assessment for the existing cohort.
- Develop a competent assessor workforce before applications open.
- Allow portfolio, practical, scenario and referee evidence where reliable.
- Provide additional navigation support for small businesses, older practitioners and people with limited digital confidence.

10 Alternatives to provisional registration

Staged commencement, cohort-based application windows and streamlined recognition may reduce disruption. Whatever statutory mechanism is selected should preserve lawful continued work for timely applicants and a verified route to full registration. An experienced-practitioner route could grant full registration where an independent assessment demonstrates the complete required outcome; otherwise a targeted evidence and training plan should apply.

- Do not use tenure alone as proof of competence.
- Do not force competent practitioners to repeat a full Certificate III where equivalent capability is reliably demonstrated.
- Do not weaken the outcome standard for practitioners approaching retirement; instead reduce unnecessary process and cost.

11 Pre-commencement measures

Implementation should begin with published scope guidance, practitioner-role maps, assessment specifications, transition eligibility tools and an independently tested operational pilot. Builders, carpenters, RTOs, assessors, unions, insurers and consumer representatives should test realistic cases before obligations commence.

- Publish examples distinguishing registered-builder, contractor and employee responsibilities.
- Test application and evidence forms with practitioners who did not design them.
- Train and calibrate assessors using common benchmark cases.
- Establish privacy, review, complaint, incident and reassessment processes before live assessment.
- Run a sustained education period before enforcement while acting immediately on deliberate or serious safety breaches.

12 Preventing regulator and training bottlenecks

DTP and the BPC should forecast applications by region, qualification status and role, then stage intake accordingly. Assessment should identify gaps before a person is referred to training so scarce education capacity is not used for competencies already demonstrated. Before full commencement, operational testing should measure processing time, cost, regional access, assessor capacity, assessor agreement, moderation reversals and the effect of incomplete evidence.

- Accredite multiple assessment providers under common evidence and moderation rules.
- Use digital lodgement with non-digital assistance and mobile or regional assessment options.
- Create pre-assessment self-checks and documentary screening.
- Publish service standards, queue data and escalation routes.
- Prevent low-integrity recognition of prior learning by auditing assessors and sampling evidence.

13 Preventing workforce disruption

The transition design should provide adequate lead time, staged commencement and lawful continued work for timely applicants. The appropriate duration and eligibility rules should be modelled by cohort, qualification status, role and region. The Department should monitor departures, non-participation, subcontractor-to-employee shifts, regional shortages, costs and illegal work throughout transition.

- Avoid a single hard deadline for the entire cohort.
- Provide targeted financial support where transition cost is likely to drive otherwise competent practitioners from the industry.
- Coordinate with builders so tendering and site rostering reflect the commencement schedule.
- Use proportionate education-first enforcement for inadvertent early non-compliance, without tolerating deliberate evasion or unsafe work.

Class structure comparison

The work-and-risk model is a preferred option for testing, not a settled conclusion. DTP should compare it with alignment to existing builder classes using the same published criteria:

- coverage of material carpentry risks and avoidance of unintended omissions;
- clarity for practitioners, builders, consumers and enforcement officers;
- labour mobility across domestic and commercial work;
- qualification, assessment, administration and compliance cost;
- fit with contracting, supervision, insurance and corporate-practitioner responsibilities; and

- capacity to add or refine specialist scopes without unnecessary duplication.

The Department should publish the comparison and explain why the selected model is proportionate to the verified risk. This would allow stakeholders to assess both the scope coverage and the regulatory burden of the final proposal.

Current evidence requested

A final Regulatory Impact Statement should use current evidence from DTP, the BPC and relevant training and workforce sources. Before the model is settled, the Department should publish or describe:

- the number of active carpenters by employment status, qualification pathway, region, age profile and principal work type;
- defect and complaint information attributed by work type, responsible role and cause, rather than sector totals alone;
- expected application volumes, assessment demand, processing capacity, regional access and service standards;
- current regulator, assessor, training, public-register, compliance and enforcement costs;
- expected effects on workforce participation, business structure, apprentice completion, illegal work and regional shortages; and
- the assumptions and evidence connecting entry regulation to efficiency, defect, dispute and consumer outcomes.

Where current evidence is unavailable, the final RIS should identify the uncertainty explicitly, use sensitivity ranges and commit to baseline and post-implementation measurement.

Advanced residential capability and career progression

The consultation correctly focuses first on minimum competence for people physically performing regulated carpentry work. The Department should not assume that this minimum demonstrates every capability involved in complex alteration work in existing homes. Whether integrated renovation judgment constitutes a distinct capability gap requiring formal recognition remains an evidence question that should be tested rather than presumed. Testing must permit a negative, inconclusive or positive result.

Victoria should preserve a coherent progression from apprentice to registered carpenter and, where evidence establishes a need, to recognised advanced capability and registered builder. The title and statutory vehicle should follow the function and evidence. Possible mechanisms include an endorsement, reform of Domestic Builder Limited to Carpentry, a separate class, a non-statutory credential or no additional statutory mechanism. This submission does not select among those mechanisms.

Capability level	Primary function	Evidence emphasis	Authority boundary
Apprentice	Supervised learning	Training contract and workplace evidence	Works only within apprenticeship arrangements
Registered carpenter	Perform prescribed carpentry work	Qualification or equivalent competence and apprenticeship outcome	No broader contracting or builder authority by implication
Advanced residential capability	Integrated judgment in existing-home alteration and renovation	Verified portfolio, scenarios, interview, references and boundary decisions	Mechanism and authority remain to be determined

Registered builder	Contracting, supervision and project responsibility within class	Technical, regulatory, business, financial and probity requirements	Existing statutory builder responsibilities
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Evidence test for advanced residential capability

The proposition should be confirmed, narrowed or rejected using evidence from renovation-specific defects and complaints; work requiring integrated judgment across multiple carpentry activities; concealed-condition and progressive-discovery decisions; boundary, escalation and specialist-handoff performance; comparative practitioner assessments; assessor agreement and moderation; consumer and builder understanding of current scopes; interaction with DB-L Carpentry; and evidence of measurable public benefit.

No single indicator should determine the result. The analysis should also test whether existing registration, builder classes, guidance or non-statutory recognition already address the identified problem.

Assessment architecture

A defensible scheme must assess more than time served. The assessment method should be proportionate to the class and capable of distinguishing direct evidence, supplied information, inference and material unknowns.

- Qualification evidence and apprenticeship completion, or a reliable equivalence assessment.
- Verified work history showing the work actually performed and the degree of responsibility exercised.
- Practical demonstration or structured scenarios where the risk of the work warrants it.
- Technical testing linked directly to the authorised scope and applicable mandatory standards.
- Referee verification that corroborates selected claims without transferring the assessment decision to the referee.
- Independent scoring, moderation, reasons, review rights and controlled reassessment.
- Critical-failure rules for unsafe action, fabrication, concealment, material authority overreach and failure to stop or refer when a clear boundary is reached.

The Advanced Residential Carpentry Assessment Standard and pilot instrument pack developed by Carpenters for Housing Reform Victoria are working materials, not validated regulatory instruments. They may provide a controlled way to test assessment usability and boundary judgment, but no claim of external endorsement or operational validation is made.

Evidence issues in the 2024 impact analysis

Historical reference only - not current policy or a current forecast. The 2024 draft impact analysis is useful historical material, but the Department states that it does not represent current policy and has not been updated for the reformed regulatory system. Any new RIS should retest its causal and cost assumptions.

Issue	Observed position	Recommended treatment
Benefit sensitivity	The historical analysis reports a positive result for Option 1 under its central assumptions, with an NPV of approximately \$481 million and a BCR of 2.20. Its sensitivity summary reports	Publish low, central and high cases and identify the evidence supporting the assumed causal effect of registration. The cited historical results appear in the 2024 draft RIS, Table 0.10 on

	an NPV of approximately negative \$139 million and a BCR of 0.65 where efficiency benefits are limited to 0.25 per cent and defects and disputes do not decrease.	pages 106–107 and section 4.6.4 on page 118; they are not current policy forecasts.
Defect attribution	Sector-level defect data can include design, product, supervision, coordination and other trade causes.	Attribute defects by work type, responsible role and cause before claiming benefits from carpenter entry controls.
Scope omissions	The historical preferred option focused on framing, cladding, doors and windows, plus specialist formwork and falsework.	Test stairs, passive-fire carpentry, temporary works and cross-trade interfaces against current risk evidence.
Workforce estimates	The historical analysis used point-in-time workforce and registration data.	Refresh workforce size, qualification, business structure, region and retirement-profile data.
Administrative cost	A large new cohort will require assessment, registration, public-register, compliance and enforcement capacity.	Model current BPC systems, staged intake and the cost of credible ongoing enforcement rather than entry processing alone.
Behavioural response	Registration may cause exit, avoidance, role changes or illegal work.	Monitor actual response and include targeted support and proportionate early enforcement.

Anticipated concerns and safeguards

Registration may increase assessment, administration and compliance costs without producing a corresponding improvement in quality. It may also contribute to workforce exit, reduced flexibility, duplicated builder responsibilities, avoidance or illegal work, assessment bottlenecks and inconsistent recognition of prior learning. Entry regulation will not by itself address defects caused by design, products, supervision, sequencing or commercial pressure.

These risks support staged implementation rather than abandonment of accountability. The response should include current cost and workforce modelling, a lawful continued-work pathway, clear role boundaries, independent assessment moderation, service standards, regional access, proportionate early enforcement and published outcome evaluation. If the expected benefits are not demonstrated, the scheme should be adjusted rather than defended by reference to registration numbers alone.

Implementation safeguards

- No automatic assumption that registered status authorises consumer contracting, building-permit responsibility or work outside the prescribed class.
- No dilution of registered-builder responsibility for overall project coordination and supervision.

- No automatic grandfathering based solely on years worked.
- No full-qualification repetition where equivalent competence is reliably demonstrated.
- No averaging away of a material safety, honesty or authority-boundary failure.
- No public representation that a pilot or voluntary assessment grants statutory authority.
- No expansion of restricted work solely to create occupational status; restriction must respond to verified risk and public benefit.

Evaluation should use a published baseline, attribution rules, methods, data limitations and reporting intervals. It should include appropriately independent evaluation or oversight so incomplete data and self-reporting do not produce unjustified conclusions.

Proposed measures of success

Outcome	Example measures
Building quality	Attributed defect rate and severity; rectification orders; recurrence by work type; concealed-work failures
Accountability	Practitioner traceability; complaint resolution; disciplinary timeliness; compliance after education or enforcement
Skills	Apprenticeship completion; recognition outcomes; gap-training completion; reassessment success
Workforce	Active practitioners; exits; regional shortages; processing delay; cost and time burden; illegal-work indicators
Consumer confidence	Understanding of scope; ability to verify status; complaints about misleading authority; survey confidence
System performance	Application service standards; assessor agreement; moderation reversals; appeals; audit findings

Material offered for further discussion

Carpenters for Housing Reform Victoria can provide the following working material for policy discussion, subject to its stated limitations. DB-L Carpentry Gap Analysis v0.2 provides preliminary scope and mechanism mapping for discussion; it is not presented as final legal analysis:

- Victorian Carpentry Capability Progression Model v0.1.
- DB-L Carpentry Gap Analysis v0.2.
- Trades Registration Consultation Evidence Brief v0.1.
- Advanced Residential Carpentry Assessment Standard v0.1.
- ARC Pilot Assessment Instrument Pack v0.1.
- Scope escalation decision states: PROCEED, PROCEED WITH CONTROL, INVESTIGATE, REFER, ESCALATE and STOP.

These materials are capability-first and vehicle-neutral. They do not presume that RRC is the preferred regulatory mechanism, do not criticise current DB-L practitioners, and do not claim government or regulator endorsement.

Conclusion

Victoria has a credible opportunity to create direct accountability for regulated carpentry work while improving occupational clarity and preserving workforce capability. One leading design for further testing is a proportionate work-and-risk-based framework that separates technical competence from contracting authority, recognises demonstrated experience through reliable assessment, and retains clear builder and specialist boundaries. Another model may be preferable if current evidence shows better coverage, enforceability or transition outcomes.

Minimum trade registration should be implemented well. Advanced residential capability should then be considered as a separate evidence question. If government concludes that recognition would improve consumer, workforce or regulatory outcomes, the function, scope, assessment and controls should be defined before selecting the title or statutory vehicle.

References

1. Department of Transport and Planning, Implementing carpentry registration and licensing, Consultation Paper, September 2026.
2. Department of Transport and Planning, Regulatory Impact Statement Building Amendment Carpentry Work Regulations 2024, historical draft published for reference in September 2026.
3. Engage Victoria, Registration and licensing of carpenters, consultation open 14 September to 11 October 2026.
4. Australian Building Codes Board, National Registration Framework.
5. Carpenters for Housing Reform Victoria working documents listed under Material offered for further discussion.

Document control

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